

BY-LAW NO. 8735

A By-law to regulate city land

THE COUNCIL OF THE CITY OF VANCOUVER, in public meeting, enacts as follows:

Name of By-law

1. The name of this By-law, for citation, is the "City Land Regulation By-law".

Definitions

2. In this By-law:

"city land" means land owned by or leased to the city except for:

- (a) streets,
- (b) the parks defined in section 488(4) of the *Vancouver Charter*, or
- (c) land in respect of which the city has granted the exclusive right of possession to another person; and

"manager" means the City Manager appointed by Council under the *Board of Administration By-law*.

Regulation of city land

3. A person must not, without the prior written consent of the manager:

- (a) cut, break, injure, damage, or destroy any tree, shrub, plant, turf, or flower on city land;
- (b) remove any rock, soil, tree, shrub, plant, turf, or flower from city land;
- (c) deposit any garbage, refuse, litter, or other waste material on city land, except in containers provided by the city for that purpose;

(d) construct, erect, place, deposit, maintain, occupy, or cause to be constructed, erected, placed, deposited, maintained or occupied, any structure, tent, shelter, object, substance, or thing on city land; or

(e) light any fires or burn any material on city land.

4. The manager, or any person designated by the manager, may remove or cause to be removed from city land any structure, tent, shelter, object, substance, or thing constructed, erected, placed, deposited, or maintained on city land contrary to this By-law.

Offences against By-law

5. A person who:

(a) violates any provision of this By-law;

(b) suffers or permits any other person to violate any provision of this By-law;

(c) neglects to do or refrains from doing anything required to be done by any provision of this By-law; or

(d) fails to comply with any order, direction, or notice given under this By-law;

commits an offence against this By-law.

Fines

6. A person who commits an offence against this By-law is punishable on conviction by a fine of not less than \$100.00 and not more than \$2,000.00 for each offence.

Fine for continuing offence

7. A person who commits an offence of a continuing nature against this By-law is liable to a fine not exceeding \$50.00 for each day such offence continues.

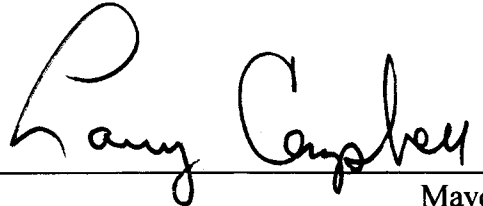
Severability

8. A decision by a court that any part of this By-law is void or unenforceable is not to affect the balance of the By-law.

Force and effect

9. This By-law is to come into force and take effect on the date of its enactment.

ENACTED by Council this 23rd day of October, 2003



Mayor



City Clerk